SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Special Leave Petition (Crl.) No. 2745 of 2002

CNR: SCIN010027452002

Date: 01 October, 2002

Citation: (2002) 10 SCC 283

CORAM: Hon'ble M.B. Shah & D.M. Dharmadhikari, JJ.

Petitioner: Sunderbhai Ambalal Desai

- VERSUS -

Respondent: State of Gujarat

DOMAIN: CRIMINAL PROCEDURE & PROPERTY CUSTODY **STATUS: Good Law (Binding Procedural Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Powers under Section 451 CrPC should be exercised expeditiously and judiciously. It is of no use to keep seized vehicles at police stations for a long period. Magistrates should pass appropriate orders for interim release taking adequate security and photographic records.

STATUTES APPLIED: Section 451 CrPC, Section 457 CrPC

DISPOSITION: COMPREHENSIVE DISPOSAL OF SEIZED PROPERTY GUIDELINES LAID DOWN

EXECUTIVE RATIO SUMMARY:

Landmark directions mandating prompt release of seized vehicles, cash, and valuable property under Section 451 CrPC on bond rather than allowing them to decay in police station yards.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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